

The Jammu and Kashmir Arya Samajist Marriages Validation Act, 1999 (1942 A. D.)

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State of Jammu-Kashmir - Act

The Jammu and Kashmir Arya Samajist Marriages Validation Act, 1999 (1942 A. D.)

JAMMU & KASHMIR

India

The Jammu and Kashmir Arya Samajist Marriages Validation Act, 1999 (1942 A. D.)

Act 3 of 1999

Published on 17 April 1942

Commenced on 17 April 1942

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The Jammu and Kashmir Arya Samajist Marriages Validation Act, 1999 (1942 A. D.)

Act

No. 3 of 1999

[Received the assent of His Highness the Maharaja Bahadur on 17th April, 1942/5th Baisakh, 1999 and published in Government Gazette dated 22nd Jeth, 1999/4th June, 1942.]

An Act to recognise and remove doubt as to the validity of marriages current among Arya Samajists.

Whereas it is expedient to recognise and place beyond doubt the validity of marriages between Arya Samajists ;

It is hereby enacted as follows :-

1.

Short title, extent and application.

(1)

This Act may be called Jammu and Kashmir Arya Samajist Marriages Validation Act, 1999.

(2)

It shall extend to the whole of the Jammu and Kashmir State and shall also apply to all the State subjects outside the State wherever they may be.

2.

Validation of marriage out of caste, etc.

- Notwithstanding any provision of Hindu law, custom or usage to the contrary, no marriage contracted, whether before or after the commencement of this Act, between two persons being at the time of the marriage Arya Samajists, shall be invalid or shall be deemed ever to have been invalid by reason only of the fact that the parties at any time belonged to different castes or different sub-castes of Hindus or that either or both of the parties at any time before the marriage professed a religion other than Hinduism.

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